
HARRY D. McENROE
Direct dial: (973) 425-8676
hmcenroe@mdmc-law.com

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Via Email

Bruce H. Nagel, Esq.
Nagel Rice, LLP
103 Eisenhower Parkway, Suite 103
Roseland, NJ 07068

Re: B.B. v. Mell, et al.
Docket No.: ESX-L-7200-19
MDMC File No. 02767-0001

Dear Bruce:

As you know, our firm represents the Gulfstream defendants (“Gulfstream”) in this action. Pursuant to Rule 1:4-8(b), this correspondence will serve as these defendants’ written notice that the allegations within the Second Amended Complaint, Count Ten, as against Gulfstream, violate both N.J.S.A. 2A:15-59.1 and Rule 1:4-8.

Giving the plaintiff the benefit of all reasonable inferences, after the conclusion of years of extensive and prolonged discovery, including endless motion practice, a plausible liability theory as against Gulfstream simply does not exist. The thrust of the allegations against Gulfstream as set forth in Count Ten of the Second Amended Complaint, captioned “Negligence Against Corporations,” are: (1) Gulfstream knew or should have known that one or more of the tortious acts of defendant Mell took place in facilities owned and/or operated by them; (2) Gulfstream owed a duty of care to plaintiff not to allow these premises to be utilized for criminal activity and tortious acts; (3) Gulfstream, by allowing its offices to be utilized for such unlawful, tortious purposes, provided substantial assistance to the commission of the tortious acts; and (4) Gulfstream breached its duty of care to B.B.

It is well settled that the existence of a duty of care is a legal determination to be made by a court. Foreseeability of the risk of harm is recognized as the foundational element in this determination of whether a duty exists. A trilogy of New Jersey Supreme Court cases, culminating in the decision of Coleman v. Martinez, 247 N.J. 319 (2021), focus upon the threshold foreseeability of harm analysis where, as here, the risk of harm is posed by third persons. Any cogent application of the principals articulated within these decisions to the undisputed facts herein must result in a dismissal of all claims as against Gulfstream.

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Of particular relevance here is the case of J.S. v. R.T. H., 155 N.J. 330 (1998), where the Supreme Court focused upon the “foundational element” of foreseeability within the duty determination, in the context of the sexual abuse of minors by a third-party. While the court ultimately found a duty on the part of the spouse to report, any review of the analysis undertaken supports Gulfstream’s position. Under the unique spousal circumstances, the court held that a wife with “knowledge or special reason to know” that her spouse was sexually abusing children had a duty to prevent or report that abuse. 155 N.J. at 352.

The J.S. court initially addressed the “objective analysis” applicable to foreseeability as a component of a duty to exercise care, as based on the defendant’s “knowledge of the risk of injury.” Id. at 338. The court further noted that where the risk of harm is difficult to ascertain, foreseeability may require that a defendant have a “special reason to know” that a particular plaintiff would likely suffer a “particular type” of injury. Id. at 338 (citation omitted). Finally, the J.S. court ultimately emphasized:

Further, when the risk of harm that is posed by third persons, a plaintiff may be required to prove that defendant was in a position to “know or have reason to know, from past experience, that there [was] a likelihood of conduct on the part of a [a] third-person” that was “likely to endanger the safety” of another.

Id. (quoting Clohesy v. Food Circus Supermarkets, Inc., 149 N.J. 496, 507 (1997).)

In short, there is utterly no basis, under the undisputed facts, to support any claim that the Gulfstream defendants knew, or had reason to know, of defendant S. Bradley Mell’s after-hours sexual abuse of a minor within the offices that the company subleased from defendant W. H. Mell Associates. See also G.A. – H. v. K.G.G., 238 N.J. 401 (2019) (court concluding that no reasonable trier of fact could find that the co-worker defendant knew or had special reason to know that assailant was engaged in an illegal sexual relationship with a minor).

The Supreme Court undertook what it characterized as the “foreseeability inquiry” in the context of third-party harm in Coleman v. Martinez, 247 N.J. 319 (2021). Unlike the “novel context” associated with the J.S. and G.A.– H. cases upon which it relied, the Coleman case did not involve the sexual abuse of a minor. Rather, it arose in the “uniquely personal” relationship between mental-health practitioners and their patients. Id. at 343. The court held that the victim of a violent assault by a defendant social worker’s patient could maintain an action due to the surrounding facts, which made it particularly foreseeable that the patient would lash out against plaintiff. Id. at 349-50. Comparing the respective facts in those other matters, the court stated:

These facts are like those found relevant to foreseeability in J.S. (finding relevant a spouse’s prior offenses, therapeutic history and regimen, and physical evidence discoverable in the marital home), and a far cry from the absence of either knowledge or a reason to know in G.A. – H.

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Id. at 49-50 (citations omitted). There is a stark lack of either knowledge, or reason to know, herein.

Multiple witnesses have provided testimony concerning the lack of foreseeability herein. The Second Amended Complaint also details how: “Mell hid his relationship with B.B.” See ¶ 77; see also ¶¶ 79-82; ¶ 84; and ¶¶ 89-91. B.B. also specifically described the clandestine nature of the off-hour visits to Mell’s offices during her deposition.

The dubious nature of any foreseeability argument is demonstrated by a comparison of this fundamental concept as applied to plaintiff’s parents. Despite their knowledge of the improper sexual relationship engaged in by Mell with their underaged older daughter, the parents claim that they were blind-sighted by their eventual discovery of a similar relationship between Mell and plaintiff. In essence, the parents posit that plaintiff’s sexual abuse was unforeseeable to them, despite the facts revealed by their deposition testimony and associated documentary evidence.

In marked contrast, the Gulfstream defendants had utterly no knowledge of the existence of plaintiff, let alone Mell’s previous abuse of the older sister. As revealed by the depositions of both Mell and the Gulfstream principals, Mell’s personal affairs were kept totally private from his business partners.

Based on the foregoing, Gulfstream demands that all allegations of the Second Amended Complaint be dismissed as they may pertain to Gulfstream with prejudice. You are accordingly hereby given written notice that a motion for sanctions will be made if the referenced claims are not dismissed with prejudice within 28 days of service of this written demand as against your firm and client.

Please be guided accordingly.

Very truly yours,

McElroy, Deutsch, Mulvaney & Carpenter, LLP

s/Harry D. McEnroe

Harry D. McEnroe

HDM:gb
cc: All Counsel